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STRICTLY PRIVATE AND CONFIDENTIAL — LEGALLY PRIVILEGED

Date: 8 July 2026

Re: Case No. 480/2026/820 (Dubai Courts) — Response to Request for Documents and Clarification

Dear Sirs,

1. Introduction

- 1.1 We write further to the request for documentation and clarification in connection with the above-referenced proceedings, made in the context of a coverage assessment under Mr. Konstantin Kirchfeld's directors' and officers' liability policy.
- 1.2 This letter consolidates our response on the basis of the materials presently available to us on the Dubai Courts electronic system and in the supporting document bundle. Where information is not yet available to us, we say so expressly, and we have been careful to distinguish between what the court record establishes and what we understand to be the position pending disclosure of the full file.

2. The case documents

- 2.1 *Materials presently available.* The court file, as accessible to us at the date of this letter, comprises:
 - (a) the official case summary and registration extract, recording the procedural status of the matter and the parties to it; and
 - (b) an evidentiary bundle comprising reimbursement requests, invoices, email correspondence and related technical and financial materials submitted in support of the application.
- 2.2 *Classification.* The matter is registered as a commercial expert-appointment proceeding (دعوى تعيين خبرة تجاري).
- 2.3 *The expert mandate.* The Court has appointed a forensic expert under a binding mandate to:
 - (a) examine the reimbursement requests attributed to Mr. Kirchfeld;
 - (b) verify the associated invoices, email correspondence and financial records;
 - (c) liaise with the issuing entities as necessary; and

- (d) determine whether any document was manipulated, or was used to obtain funds improperly.

Mr. Kirchfeld is named as a respondent in his personal capacity.

- 2.4 *The originating document.* We should address directly the insurer's request for a separate underlying “petition” or statement of claim, as distinct from the court summary. In a proceeding of this kind, the application for the appointment of an expert is itself the originating document: it is not a precursor to some further, fuller pleading that is awaited. There is accordingly no separate petition or statement of claim to be disclosed. The substance of what is being alleged, and what is sought, is contained in the expert-appointment application and its accompanying evidentiary bundle — the reimbursement requests, invoices, correspondence and financial records described above — together with the terms of the expert mandate itself. Those are the operative documents, and they are the materials we have provided. A translation of the key documents is in hand and will follow.
- 2.5 *Other materials.* Certain ancillary items — for example, detailed hearing minutes of any procedural sessions — may not yet appear on the portal as the matter progresses. We continue to monitor the system and will provide any further documents as and when they become available.

3. Language of the file

- 3.1 In accordance with the procedure of the Dubai Courts, all documents in this matter are issued and maintained in Arabic. The materials provided reflect the original official court file — including the expert mandate and supporting documentation — in their original language. A translation of the key documents is being prepared and will follow. We remain available to clarify the effect of any particular extract in the interim.

4. Procedural and substantive clarification

- 4.1 *Nature of the proceeding.* Although classified as an expert-appointment case, the proceeding is, in substance, a court-directed forensic investigation into reimbursement transactions attributed to Mr. Kirchfeld, the expert being mandated to determine whether funds were improperly obtained.
- 4.2 *Whether a monetary claim is presently asserted.* The proceeding is at the expert-appointment / forensic stage. As explained at paragraph 2.4, the expert-appointment application is the originating document; it does not contain, and there is no separate pleading asserting, a quantified monetary claim against Mr. Kirchfeld personally at this stage. The present object of the applicants is the determination of the matters within the expert's mandate — the authenticity and regularity of the reimbursement documentation — rather than the recovery of a stated sum. Under Dubai procedure, findings from an expert phase of this kind are

commonly relied upon to found, or to quantify, a subsequent substantive claim, and it is prudent to proceed on the footing that they may be so used here.

4.3 *The parties.* As reflected in the court record, the parties are:

Applicants: Global Management Services Ltd; Mondrian GMS Fashion LLC; JC New Retail AG.

Respondents: Mr. Konstantin Kirchfeld (in his personal capacity); YNAP Middle East General Trading LLC (Branch); Harvey Nichols (Dubai) LLC; Farfetch Middle East FZE.

4.4 *Scope of the review.* The expert is tasked with examining the reimbursement requests submitted to the corporate entities, the underlying invoices and supporting documentation, the associated email communications, and the corresponding payment and reimbursement records, in order to assess the authenticity and internal consistency of those documents and whether any manipulation or irregularity is present.

4.5 *Transactions and period.* On the available materials, the review concerns 32 reimbursement requests attributed to Mr. Kirchfeld, supported by invoices (including retail transaction documentation), email correspondence and payment records, and relating to a defined historical period (notably early 2023), arising from the internal reimbursement processes of the GMS-related entities.

4.6 *Relationship to earlier matters.* The current file does not, on its face, cross-refer to earlier case numbers. That said, the subject matter — the verification of reimbursement requests, supporting invoices and purchase documentation, and the associated email correspondence — corresponds closely to the factual matrix underlying the matters previously raised, including civil case 22/2025/463, the related criminal proceedings and the EY / reimbursement allegations. On the information presently available, the transactions under examination appear to relate to Mr. Kirchfeld's former role at GMS and to the same underlying allegation complex. We would expect the present proceeding to be best understood as a court-directed technical and forensic phase addressing that same matrix through a structured expert process of document verification, transaction analysis and source confirmation, the findings of which may be relied upon in related or subsequent proceedings.

5. Basis of the proposed fees and the engagement of experts

5.1 The proposed fees reflect the scope of work required to protect Mr. Kirchfeld's position as a named respondent in an active, court-directed expert process. That work comprises, in outline:

- (a) review and analysis of the case file and supporting documents — the expert-appointment application, the reimbursement requests, invoices, correspondence and financial records — including any further materials entering the file as the matter progresses;

- (b) engagement with the court-appointed expert, including responding to requests for information and to expert queries;
- (c) preparation of submissions and explanatory materials for the expert process;
- (d) review of, and response to, any expert findings or report;
- (e) attendance and representation at hearings and procedural sessions; and
- (f) management, translation and coordination of Arabic-language court materials.

5.2 *The central importance of expert handling.* The defining feature of this proceeding is that its outcome will be driven not by legal submission alone but by the findings of a court-appointed forensic expert. In the Dubai Courts, the expert's report carries substantial evidential weight and, in practice, frequently determines the factual matrix on which any subsequent liability is assessed. The single most consequential item of defence work is therefore the proper handling of, and engagement with, that expert. An unanswered or unchallenged expert report is liable to harden into an adverse factual finding that is difficult and costly to displace later — with a corresponding increase in the insurer's ultimate exposure. Cost incurred now, in engaging with the expert, is thus not discretionary: it is the point at which the matter is most efficiently and effectively defended.

5.3 *Engagement of dedicated expert support.* For that reason, Mr. Kirchfeld's defence will be conducted with the support of dedicated forensic and document-examination specialists retained for this matter — including in-house forensic-accounting and technical resource deployed alongside the legal team. The role of that specialist support is to:

- (a) independently examine the 32 reimbursement requests, the underlying invoices and retail transaction documentation, the associated email correspondence and the payment records, and test the authenticity, provenance and internal consistency of each;
- (b) reconstruct the reimbursement and approval trail within the relevant GMS-related entities, so that each transaction can be explained against the contemporaneous process rather than in isolation;
- (c) prepare technical analyses, schedules and source confirmations capable of being placed before the court-appointed expert, and of anticipating and answering the questions the expert is mandated to address;
- (d) critically review any methodology, working papers and findings produced by the court-appointed expert, and identify any error, omission, unsupported inference or mischaracterisation for correction; and
- (e) support the preparation of a substantive response to the expert's report, and any observations or objections to be filed.

5.4 *Why this is the reasonable and cost-effective course.* Conducting the expert phase with dedicated specialist support is not an inflation of cost but a control on it. It ensures that the expert works from a complete and correctly understood record; it reduces the risk of an

adverse report founded on incomplete material; and it front-loads the work at the stage where it has greatest effect and lowest cost, rather than deferring it to the far more expensive task of dislodging concluded findings in later, substantive proceedings. Deploying forensic resource in-house, alongside the legal team, is itself a cost-efficiency: it avoids duplicative external retainers, keeps the technical and legal workstreams integrated, and ensures continuity of knowledge across the matter.

- 5.5 *Comparison with the earlier civil matter.* This scope distinguishes the present matter from the earlier civil proceedings, in which a substantial body of documents, legal argument and factual work — largely developed in the criminal proceedings — was already available and could be reused, with a correspondingly lower fee. The present matter requires separate review and handling within a new, forensic, expert-led process, and the proposed fees are calibrated to that scope. They are, in our assessment, reasonable, necessary and proportionate to the amounts and interests at stake, and to the consequences that turn on the expert's findings.

6. Coverage position

- 6.1 We set out below, for the insurer's assistance, why we consider the defence costs of this proceeding — including the expert-handling work described in section 5 — fall to be met under a directors' and officers' liability policy of the ordinary kind, and why a declinature would not, in our respectful view, be well-founded. We address the position in principle; we do not have the policy wording before us, and this letter is without prejudice to the precise terms, which govern.
- 6.2 *A Claim against an Insured Person.* The proceeding names Mr. Kirchfeld personally as a respondent and concerns conduct said to have arisen in the discharge of his functions as an officer of the GMS group. It is therefore a claim against an insured person in an insured capacity, in respect of an alleged wrongful act of the kind such policies are written to answer. A court-directed forensic examination that names the insured and seeks to determine whether he acted improperly is, on any ordinary reading, both a “Claim” and an “Investigation” within the cover, and the associated defence and investigation costs are the very costs the policy exists to fund.
- 6.3 *No conduct exclusion is engaged.* Policies of this nature exclude liability for fraud, dishonesty or the obtaining of improper personal profit only where such conduct has been established by a final, non-appealable adjudication. There has been no such adjudication. To the contrary, the whole purpose of the present proceeding is to investigate — not to establish — whether any irregularity occurred; the allegations remain unproven and Mr. Kirchfeld is entitled to the presumption of innocence. The conduct exclusion is therefore not engaged, and on the standard terms the insurer is obliged to advance defence costs as they are incurred, subject only to any contractual right of recoupment should improper conduct later be finally

adjudicated. Declining cover now, on the basis of allegations that are the very subject of the investigation, would pre-judge the outcome the process exists to determine.

- 6.4 *Notification and co-operation.* Notice was given promptly once the case information became available (section 7 below). Mr. Kirchfeld has co-operated and will continue to co-operate fully with the insurer, including as to the scope and conduct of the defence and the reasonableness of costs. We are ready to agree an appropriate reporting and cost-control protocol.
- 6.5 *The insurer's own interest.* Advancing the cost of proper expert handling now is aligned with the insurer's interest as well as the insured's. The expert's findings will shape the exposure that the insurer may ultimately be called upon to meet. Under-resourcing the defence at this stage — or delaying approval while the expert proceeds — risks an adverse report crystallising unchallenged, and a materially larger liability later. Timely approval is therefore the course most consistent with the insurer's duty to act in the insured's interest and with the mitigation of its own exposure.
- 6.6 We would accordingly invite the insurer to confirm cover and cost approval so that the defence, and in particular the expert-handling work, can proceed without prejudicial delay. We are glad to provide any further information the insurer reasonably requires for that purpose.

7. Timing of notification

- 7.1 We confirm that, on our understanding, the timing of notification to Mr. Kirchfeld was affected by technical and access limitations within the Dubai Courts electronic portal. The matter was communicated to him promptly once sufficient case information became available to us through that system.

8. Summary

8.1 In short:

- (a) Mr. Kirchfeld is named, in his personal capacity, as a respondent in an active Dubai Courts proceeding;
- (b) the Court has directed a forensic examination of the reimbursement transactions attributed to him, to determine whether funds were improperly obtained;
- (c) the proceeding is evidentially significant, turns on the findings of a court-appointed forensic expert, and warrants active legal representation — with dedicated expert support — at this stage; and
- (d) the defence costs, including that expert-handling work, fall to be met under a D&O policy of the ordinary kind, no conduct exclusion being engaged in the absence of any final adjudication.

8.2 We trust the above addresses the queries raised, including the position on the originating document explained at paragraph 2.4. We shall provide the translation of the key materials shortly, and should be glad to confirm cover and next steps at the insurer's convenience.

Yours faithfully,

Dina Alkhouli

Client Success Manager

For and on behalf of

NOURA ALMAAZMI ADVOCATES & LEGAL CONSULTANCY

Reviewed and approved by: _____, Advocate (Noura Almaazmi Advocates & Legal Consultancy) — the procedural and coverage analysis at sections 4 and 6 is issued under the supervision of the responsible advocate.

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